



CHAPTER xx.

An Act for incorporating and conferring powers upon the East Ardsley Gas Company and for other purposes.

A.D. 1903.

[30th June 1903.]

WHEREAS in the year one thousand eight hundred and seventy-one certain persons formed themselves into a company under the name of "The East Ardsley Gas Light Company Limited" (hereinafter referred to as "the Limited Company") for the purpose of supplying the parish of East Ardsley in the county of York and the neighbourhood thereof with gas and generally for carrying on the business usually carried on by gas companies and such company was duly registered on the ninth day of September one thousand eight hundred and seventy-one under the Companies Act 1862:

And whereas by the East Ardsley Gas Light Order 1872 (hereinafter called "the Order of 1872") confirmed by the Gas and Water Orders Confirmation Act 1872 the Limited Company were authorised by agreement to purchase or take on lease and use such of the lands in the said parish of East Ardsley described in the schedule to the said Order as might be required for their undertaking and to erect and maintain on such lands gasworks and works for the manufacture or conversion of residual products and to supply gas within the whole of the said parish of East Ardsley and the whole of the hamlets or places of Tingley Topcliff New Scarborough Sike and Woodkirk in the parish of West Ardsley in the county of York and such other parts of the said parish of West Ardsley as lie eastward of the Dewsbury and Leeds turnpike road:

And whereas by the Order of 1872 it was provided that the share capital of the Limited Company should not exceed six thousand pounds unless they should be thereafter authorised to raise additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament but no

A.D. 1903. restriction was imposed as to the amount which the Limited Company might borrow on mortgage :

And whereas under the memorandum and articles of association of the Limited Company the capital of that company was three thousand pounds divided into three thousand shares of one pound each with power to borrow and in order to meet the demands for gas the Limited Company in pursuance of special resolutions increased their share capital to twelve thousand pounds and they have also raised one thousand two hundred pounds by borrowing :

And whereas the whole of the twelve thousand pounds share capital has been issued in one pound shares and is fully paid up and the amount derived therefrom and from borrowing has been applied to purposes of the Company to which capital is properly applicable :

And whereas the demand for gas within the aforesaid limits has increased and is increasing and it is expedient that the Limited Company should be dissolved and the members thereof re-incorporated with the powers hereinafter conferred and that the Company so re-incorporated be authorised to maintain and continue and to extend and improve the gasworks of the Limited Company and that additional capital be provided for such extension and improvement :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the *East Ardsley Gas Act 1903*.

Incorporation of general Acts.

2. The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and the Gasworks Clauses Act 1847 (except sections 31 to 34) and the Gasworks Clauses Act 1871 are subject to the provisions of this Act incorporated with and form part of this Act And the said Gasworks Clauses Acts as so incorporated with this Act shall apply to the existing

undertaking of the Limited Company by this Act vested in the Company incorporated by this Act as if the same had been authorised by this Act: A.D. 1903.

Provided that section 35 of the Gasworks Clauses Act 1847 shall be read and construed as if the words from “in case the whole” down to the words “have been paid” were omitted therefrom and as though the expression “the prescribed rate” included the standard rates of dividend or such rates as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the insurance fund or to the renewal fund authorised by this Act.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. The expression “the Company” shall mean the Company incorporated by this Act and the expressions “the gasworks” and “the works” and “the undertaking” shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvements extensions or enlargements thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively. Interpretation.

4. The limits of this Act shall be the parish of East Ardsley in the west riding of the county of York and the hamlets and places known as Tingley Topcliff New Scarborough Sike and Woodkirk in the parish of West Ardsley in that riding and such other parts of the last-named parish as lie eastward of the Dewsbury and Leeds main road. Limits of Act.

5. From and after the passing of this Act the Limited Company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes hereinafter mentioned and shall be incorporated by the name of “The East Ardsley Gas Company” and by that name shall be a body corporate with perpetual succession and a common seal with power to purchase take hold and dispose of lands and other property for the purposes of this Act. Incorporation of Company.

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General
purposes of
Company.

6. The Company shall be established for the purposes of acquiring maintaining altering improving extending and enlarging the gasworks of the Limited Company and of manufacturing and storing gas and of supplying gas within the limits of this Act and for converting or utilising and distributing materials used in and about the manufacture of gas and of residual products resulting from such manufacture and for dealing in selling and disposing of gas coke lime tar chemicals and residual and manufactured products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas or by the combination of any of the above-mentioned matters either with each other or with other substances and for carrying on the business usually carried on by gas companies.

Present
property of
Limited
Company
vested in
Company
incorporated
by this Act.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the Limited Company or any person in trust for them or to which the Limited Company were in anywise entitled and all mains and pipes plant plugs lamps irons retorts gauges meters gas stoves lamp posts syphons apparatus stock effects matters and things which may have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the Limited Company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the Limited Company and the benefit of all contracts and engagements entered into by or on behalf of the Limited Company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the Limited Company and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Repeal of
Order of
1872 and
memorandum
and articles
of associa-
tion of
Limited
Company to
be void.

8. The Order of 1872 is hereby repealed and the memorandum and articles of association of the Limited Company shall as to any prospective operation thereof be wholly void and the Company and the holders of shares and stock therein shall be exempted from all the provisions restrictions and requirements of the said Order or any Act which applied to the Limited Company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of

any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the Limited Company if this Act had not been passed. A.D. 1903.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the Limited Company or the members thereof as such shall be as valid as if the Company had not been incorporated and the Order of 1872 had not been repealed and the said memorandum and articles of association had not been avoided by this Act and such incorporation repeal and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the Order of 1872 were not repealed and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and the holders of shares and stock therein and the property of the Company shall to all intents and purposes represent the Limited Company and the members thereof as such and the property of the Limited Company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act. Nothing to affect previous rights and liabilities.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the Limited Company or persons acting on behalf of the Limited Company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the Limited Company or any persons acting on behalf of the Limited Company the Company had been a party thereto. Contracts prior to Act to be binding.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the Limited Company or any member thereof in relation Actions &c. not to abate.

A.D. 1903. — to the affairs of the Limited Company or to which the Limited Company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the Limited Company or any member thereof if this Act had not been passed the Company and the holders of shares and stock therein being in reference to the matters aforesaid in all respects substituted for the Limited Company and its members respectively.

Indemnity. **12.** Every person who (being authorised so to do) has entered into any bond covenant contract or engagement on behalf of the Limited Company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to satisfy liabilities of Limited Company. **13.** From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the Limited Company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the Limited Company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of gas rents &c. **14.** All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the Limited Company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

As to payment of debts owing before passing of Act. **15.** All persons who immediately before the passing of this Act owed any money to the Limited Company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the Limited Company or for the payment of which the Limited Company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the Limited Company shall remain in full force and continue and be available in all respects as if such memorandum and articles of association had not been avoided.

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Certificates &c. to remain in force.

17. All documents books and writings which if the said dissolution repeal and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution repeal and avoidance.

Books &c. continued evidence.

18. All officers and servants of the Limited Company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Officers to continue until removed.

19. The books kept by the Limited Company for entering the names and addresses and occupations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until some other register of shareholders or holders of stock shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders and of holders of stock required to be kept by the Companies Clauses Consolidation Act 1845.

Present registers of members to be continued.

20. The capital and borrowing powers of the Limited Company under the Order of 1872 are hereby declared to be as follows :—

Declaration of capital of Limited Company.

Share capital twelve thousand pounds in twelve thousand shares of one pound each ;

Borrowing powers one thousand two hundred pounds :

And the allotment and issue of shares in the capital of the Limited Company and the granting of mortgages within the respective amounts aforesaid are hereby declared valid.

21. The capital of the Company shall be twenty-four thousand pounds and shall consist of—

Capital.

(1) Capital stock of the nominal amount of twelve thousand pounds representing the capital of the Limited Company as

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declared by this Act which is in this Act called “the original capital”; and

- (2) Twelve thousand pounds which is in this Act called “the additional capital” and shall be raised in manner hereinafter mentioned.

Original capital to vest in members of Limited Company.

22. The original capital shall be appropriated to and vested in the several persons who immediately before the passing of this Act were the registered members of the Limited Company in proportion to their respective holdings in and in substitution for their shares in the Limited Company and every portion of capital stock so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the passing of this Act affected the share or shares for which the same is substituted and so as to give effect to and not revoke any deed or other instrument or any testamentary disposition of or affecting the same.

Company shall call in and cancel existing share certificates and issue new certificates in lieu thereof.

23. The Company shall call in and cancel the existing certificates of shares in the Limited Company and issue in lieu thereof certificates under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

Transfer of capital stock.

24. Capital stock in the original capital shall be transferable in sums of one pound or multiples of one pound and sections 18 19 and 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to such capital stock and the interest thereon as if such stock and interest had been expressly mentioned therein.

Power to Company to raise additional capital.

25.--(1) The Company may from time to time raise additional capital not exceeding in the whole twelve thousand pounds by the creation and issue of new ordinary shares or stock or preference shares or stock or wholly or partly by one or more of those modes respectively but the Company shall not issue any share of less nominal value than one pound nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue

under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twelve thousand pounds and of such additional capital not more than one half in nominal amount shall be created or issued as preference capital. A.D. 1903.

(2) Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock to which a preferential dividend shall be assigned.

26. Except as in this Act otherwise provided the profits of the Company to be divided among the stockholders and shareholders in any year shall not exceed the following rates (hereinafter in this Act referred to as "the standard rates of dividend") (that is to say):— Profits of Company limited.

On the original capital the rate of ten pounds in respect of every one hundred pounds of such capital; and

On the additional capital to be raised under the powers of this Act the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

27. In case in any half-year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of the standard rates of dividend on each class of ordinary stock or shares in the capital of the Company a proportionate reduction shall be made in the dividend of each class. Dividends on different classes of shares or stock to be paid proportionately.

28. Notwithstanding anything in this Act contained the Company shall when any shares or stock in the additional capital created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than

Shares or stock in additional capital to be offered by auction or tender.

A.D. 1903. — twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner And provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock shall be accepted in preference.

Purchase-money of capital sold to be paid within three months.

29. It shall be one of the conditions of any sale of shares or stock portion of the additional capital under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be given as to sale of shares or stock.

30. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of the urban district council of Ardsley East and West and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders (as the case may be) and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the urban district of Ardsley East and West.

Disposal of shares or stock not sold.

31. When any shares or stock portion of the additional capital created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or ordinary stock in the capital of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock portion of the additional capital created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale (if the directors of the Company think fit) be less than the nominal amount thereof and any shares or stock not then sold shall be again disposed of by the directors or offered to the holders of ordinary shares or ordinary stock in the

capital of the Company at the last-mentioned reserved price and so from time to time. A.D. 1903.

32. Any sum of money which shall arise from the issue of any such shares or stock portion of the additional capital by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that in any case where a power to raise money by borrowing or to create an insurance or renewal fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital.

Application
of premium
arising on
issue of
shares or
stock.

33. The directors of the Company may if they think fit annually appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes :

Renewals.

Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to ten per centum on the paid-up capital for the time being of the Company and not exceeding two thousand pounds :

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend Provided also that if such fund be at any time reduced below such sum it may thereafter be made up to that sum and so from time to time as often as such reduction shall happen.

34. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend on the ordinary capital at the authorised rates the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company

If profits ex-
ceed amount
limited ex-
cess may be
invested and
form an
insurance
fund.

A.D. 1903. be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

Application of excess of profits over standard rates of dividend.

35. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend at the authorised rates on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Power to create a reserve fund out of dividends in excess of standard rates of dividend and application thereof

36. Where in any year the dividends on the ordinary capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the

ordinary capital of the Company and save as is in this Act provided no sum shall in any year be carried by the Company to any reserve fund. A.D. 1903.

37. The Company may borrow on mortgage of the undertaking in respect of the original capital any sums not exceeding in the whole (including the sum of one thousand two hundred pounds already borrowed on mortgage by the Limited Company) four thousand pounds. Power to borrow in respect of original capital.

38. In addition to the money which the Company are authorised to borrow by the last preceding section they may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised by shares or stock and at the time actually issued and accepted but no part thereof shall be borrowed until the whole of the shares or stock at the time issued and accepted together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that such shares or stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. Power to borrow in respect of additional capital.

39. All mortgages granted by the Limited Company and subsisting at the date of the passing of this Act shall during the continuance of such mortgages have priority over all mortgages and debenture stock granted or created and issued by virtue of this Act. Saving for existing mortgages.

40. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being owing by the Company on mortgage. For appointment of a receiver.

41. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time Debenture stock.

A.D. 1903. — created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages and debenture stock over other debts &c.

42. All moneys to be raised on mortgage or by debenture stock by the Company under this Act and all moneys continued on mortgage of the undertaking and the interest thereon respectively shall have priority against the Company and the property from time to time of the Company over all other claims on account of debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease to be granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on such mortgages or debenture stock.

Application of moneys.

43. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

First ordinary meeting.

44. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Quorum for general meeting.

45. The prescribed quorum for a meeting of the Company shall be five holders of stock or shares holding between them stock or shares of not less nominal amount in the whole than one thousand pounds.

Number of directors.

46. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than four.

Qualification of directors.

47. The qualification of a director shall be the possession in his own right of shares of not less nominal value in the aggregate than one hundred pounds or of not less than one hundred pounds (nominal value) of the original capital or other stock (not being debenture stock).

Quorum of directors.

48. The quorum of a meeting of directors shall be three.

49. Robert Swan Balden Arthur Frederick Goodson John William Turner John Thomas Willie Waterhouse and John Tweedale shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

A.D. 1903.

—
First and
subsequent
directors.

50. Any contract to be made under this Act with any corporation or public body shall not disqualify any of the members of such corporation or public body for the office of director of the Company and no director or shareholder of the Company shall be disqualified for the office of director of the Company by reason of any contract between him and the Company for any loan of money to the Company but no director of the Company being a member of any such corporation or public body shall vote upon any question with reference to any contract with such corporation or public body.

Contracts
not to dis-
qualify for
office of
director.

51. Subject to the provisions of this Act the Company may continue maintain alter improve enlarge extend and renew or discontinue the gas and other works of the Limited Company upon the lands described in the Schedule to this Act and may upon such lands or any part thereof respectively erect make and maintain alter improve enlarge extend and renew or discontinue works for the manufacture of gas and utilise and distribute materials used in and about the manufacture of gas and of residual products resulting from such manufacture and upon those lands they may accordingly manufacture gas and utilise and distribute such materials and residual products as aforesaid and may also on those lands store gas and the Company may also from time to time provide lay down maintain alter improve enlarge extend and renew or discontinue

Power as to
maintenance
and con-
struction of
gasworks.

A.D. 1903. — drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such other acts as they may think proper for making storing and supplying gas within the limits of this Act and may subject to the provisions of this Act supply gas accordingly and may deal in and sell and dispose of coke tar and residual products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas and carry on the business usually carried on by gas companies or by companies or persons dealing in any of the matters and things aforesaid.

Power to
purchase
lands by
agreement.

52. The Company may hold the lands described in the Schedule to this Act and in addition thereto may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) any lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Schedule to this Act.

Restriction
on taking
houses of
labouring
class.

53. The Company shall not under the powers of this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own

family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them. A.D. 1903.
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54. For the protection of the Great Northern Railway Company (hereinafter called “the Great Northern Company”) the following provisions shall (unless with the previous consent of the Great Northern Company under their common seal) apply and have effect (that is to say):— For protec-
tion of Great
Northern
Railway
Company.

(1)—(A) The Company shall lay down or execute the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act over any bridge belonging to or repairable by the Great Northern Company or in any part of any street which may be situate under the railways or works of the Great Northern Company so as not to interfere with the structure of any bridge over or under such railways or works. All such works and all works in any part of any street across which such railways are carried on the level shall be constructed to the reasonable satisfaction of the principal engineer of the Great Northern Company and according to such plans sections and specifications except where in the opinion of such principal engineer such plans sections or specifications are unnecessary as shall first be reasonably approved by him in writing and the Company shall comply with such reasonable directions as the said engineer may give for the purpose of preventing injury to the railways or works of the Great Northern Company or interruption to the traffic on such railways. Provided that the Company shall not commence any such works as aforesaid until after twenty-four hours’ notice in writing to the said principal engineer of the Great Northern Company or in case of emergency such notice as may be reasonably practicable;

(B) All such works shall be done at the expense of and (except as in this section otherwise provided) by the Company. Provided always that if the Company fail to restore and make good to the reasonable satisfaction of the said engineer any road which the Great Northern Company are under obligation to repair so far as the same may be disturbed or interfered with by or owing to any of the operations of the Company the Great Northern Company may restore and make good the same at the cost of the Company;

(c) The Company shall not construct any pit for stopcock or similar work in the roadway of any bridge over the

A.D. 1903.

railway of the Great Northern Company without the previous written consent of the said engineer and in the event of the level of such roadway adjoining any pit for stopcock or similar work being at any time altered the Company shall at their own expense raise or lower the pit to the new surface and execute all work necessary in connection with the alteration thereof;

(D) If for the purpose of repairing any of the existing works of the Great Northern Company it is necessary to divert or alter the level of any such main pipe or other work either temporarily or permanently the Company shall at their own expense if so requested by the Great Northern Company execute such diversion or alteration;

(E) Any dispute or difference which may arise between the Great Northern Company and the Company as to this section or anything to be done or not to be done thereunder shall be determined by an engineer to be appointed (unless otherwise agreed) by the Board of Trade on the application of either party after notice to the other:

- (2) Notwithstanding anything in this Act the Company shall not execute any works in any street or road belonging to the Great Northern Company and not dedicated to public use without the consent of the Great Northern Company but such consent may be given upon such terms and conditions as the Great Northern Company may think fit:
- (3) Nothing in this Act shall extend the application of the section whereof the marginal note is "As to specification of internal fittings and construction and placing of pipes &c. between mains and consumers' premises" to any premises belonging to the Great Northern Company and used by such Company in connection with their business.

Power to
supply gas
fittings &c.
for heating
and other
purposes.

55. The Company may purchase supply sell let for hire use and otherwise deal in fit up fix alter remove and refix but shall not manufacture meters engines stoves ranges pipes fittings and other apparatus (all of which are in this section included in the expression "apparatus") and appliances for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom

the same are sold supplied let fixed up altered removed refixed or done. A.D. 1903.

Apparatus let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent nor to be taken in execution under any process of a court of law or equity or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such apparatus has upon it a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

56. The standard price to be charged by the Company for gas supplied by them shall be four shillings and sixpence per thousand cubic feet : Dividends
dependent
on price
charged.

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows :—

In respect of any half-year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of original capital and by one shilling and ninepence on every one hundred pounds of additional capital and so in proportion for any fraction of one hundred pounds :

And in respect of any half-year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend by two shillings and sixpence on every one hundred pounds of original capital and by one shilling and ninepence on every one hundred pounds of additional capital and so in proportion for any fraction of one hundred pounds :

Provided also that if in any half-year the dividend payable shall be a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in

A.D. 1903. — the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

Pressure of
gas.

57. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

Quality of
gas.

58. The prescribed number of candles shall be sixteen or such other number not being less than fourteen or more than sixteen as may be agreed between the Company and the urban district council of Ardsley East and West.

Testing
place.

59. Within twelve months from the passing of this Act a testing place shall be provided upon some part of the works or lands of the Company or within two hundred yards from any part thereof.

Power to lay
pipes in
streets not
dedicated to
public use.

60. The Company may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Burner.

61. The prescribed burner shall be Sugg's No. 1 London Argand burner having not less than twenty-four holes and having a six-inch by one-and-three-quarter inch glass chimney and if at any time the gas flame rises above the top of the glass a six-inch by

two-inch chimney shall be used and in making tests for illuminating power the gas shall be burned at such rate as to yield the maximum light for which such burner is designed. A.D. 1903.

62. The Company may take hold and use within the limits of this Act patent rights or licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture conversion utilisation or distribution of gas and of such materials and residual products as aforesaid. Power to hold licences under letters patent.

63. The Company may contract with any corporation county council sanitary authority company or persons whether within or beyond the Company's limits of supply (but as to any such company public body or persons beyond the Company's limits of supply only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under Parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in the case of any county council or sanitary authority seven years from the making of the contract as shall be agreed upon. Company may contract with local authority for supply in bulk.

64. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent. Gas consumers to give notice to Company before removing.

65. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse supply to persons in debt for other property.

66. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Company. Notice to discontinue supply of gas.

67. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the Period of error in defective meters.

A.D. 1903. — said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Discounts.

68. The Company may if they think fit allow discounts or rebates not exceeding in any case twenty per centum to consumers of gas in consideration of prompt payment of gas rents or of large consumption upon such scale and subject to such conditions and regulations as may be prescribed by the Company. Provided that such discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that in the event of the Company allowing discounts or rebates in consideration of prompt payment of gas rents notice thereof shall be endorsed on every demand note for gas rents.

Dwelling-houses for workmen.

69. The Company may upon any lands for the time being belonging or leased to them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Company for the purposes of their undertaking.

As to specification of internal fittings and construction and placing of pipes &c. between mains and consumers' premises.

70. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specifications shall be published twice in some newspaper or once in each of two newspapers circulating in the urban district of Ardsley East and West and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the

main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building : A.D. 1903.
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(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

71. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times and at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Anti-fluctua-
tors for gas
engines.

72. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and Act to be
registered by
Registrar of
Joint Stock
Companies.

A.D. 1903. — any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Costs of Act. **73.** All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

The lands in the parish of East Ardsley in the urban district of Ardsley East and West in the west riding of the county of York situate on the west side of Fall Lane containing one acre or thereabouts now belonging to and in the occupation of the Limited Company on which their existing gasworks are situate.

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